

PLABABLE

GEMS 

VERSION 1.0

ETHICS



HIV & Confidentiality

Disclosing status to GP:

If patient doesn't want to, **RESPECT & DO NOT** inform GP

Disclosing status to a partner/ spouse :

- **1st Step** → Persuade patient to tell on his own
- **2nd Step** → If he is unwilling to or is against using precautions to avoid transmission or is threat to others of causing infection → With the help of partner notification services inform the partner

HIV & Confidentiality

Brain trainer:

A 30-year-old man is found to be HIV positive and is against condom use. **After discussing** with him, he is still **refusing to accept** the need to tell his wife of his diagnosis. What do you do?

→ **Notify** wife via **partner notification programme**

HIV & Confidentiality

Brain trainer:

A man is found to be HIV positive in a Genitourinary Medicine clinic. He is not sexually active and does not want to inform his GP. What should you do?

→ **Accept patient's decision not to inform GP**

Abortion Clinchers

Pregnancy termination is **legal** up to **24 weeks** of gestation

Only special circumstances allow abortion above 24 weeks of gestation

Brain trainer:

A healthy female pregnant with 27 weeks of gestation requests for an abortion because she **doesn't want to be reminded about her ex-partner** through her child

→ **Refuse** the termination

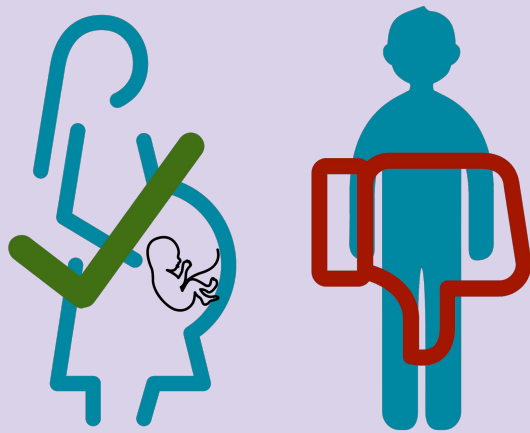
Brain trainer:

A healthy female pregnant with 31 weeks of gestation undergoes routine ultrasound suggestive of **serious foetal anomalies** and does not want to continue the pregnancy

→ **Terminate** the pregnancy

Abortion Clinchers

- Only the **mother** can **consent** to abortion
- Opinion of husband or partner is not considered



- **Sterilisation** is an individual **choice**
- No need for permission/ consent of a partner or spouse

Brain trainer:

A 36 year old woman attends the gynaecology clinic with a request for laparoscopic sterilisation and **she understands** the risk the procedure. She has two children and has completed her family but her **husband is unhappy** with this decision. What do you do?

→ **Take a written consent from the patient and proceed with the procedure**

Consent Clinchers

- Arrange a **translator** for the patient if needed
 - A consent from partner is not valid for the patient
 - If you believe there is a chance of abuse or violence involved, social services can be involved
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- Ask patient's consent before disclosing personal **information** to anyone (partner/parents/police)
 - In case of gun (accidental or otherwise) or knife injuries: Police needs to be notified with **details but NOT in initial contact**

If patient is unconscious, you can inform if you believe that patient wouldn't object

Consent Clinchers

Brain trainer:

An armed robber is injured during an exchange of gunfire with the police and comes to the Emergency Department. He **requests your silence**. What is the single most appropriate action?

→ Inform the police **without** revealing the **patient's personal information**.



Cosmetic Procedure

Brain trainer:

A boy presents with sticking out ears for which he is bullied at school. His mother is requesting otoplasty but her son does not want any operation. What should you do?

→ **Contact social services and explore their concerns**

Family

Brain trainer:

A man is brought to the hospital after a RTA. He is conscious and alert. His wife arrived a short time later and is asking about her husband's condition. What should you do?

- **Ask permission from the patient to speak to his wife**
- If patient was unconscious, you can speak to the family unless you have a reason to believe that the patient would not want this.

Consent Clinchers

Below 13 years:

- Young **below 13** years **cannot** consent
- Consent from one parent is sufficient

13 years - 16 years:

- **16 year old** young person can be **presumed** to have ability to consent
- **Below 16, may** have the capacity
- In challenging situations, get legal advice.
(eg. Young is refusing the treatment you think in best interest of his health)
- If treatment which is life saving (but not urgent) is refused by child with mental capacity, you can overrule that consent by the Court of protection

Above 16 years:

- For 16, 17 years who lack capacity, parents can consent. (England, Wales, Northern Ireland)
- 18 years or above who lack mental capacity consent from guardian with power of attorney is valid.

Consent Clinchers

Brain trainer:

A 15-year-old girl is brought to the hospital by her parents with mild lower abdominal pain which was diagnosed as an ovarian cyst. The decision for a laparoscopic ovarian cyst removal was made, but the **girl refused** the treatment **with a complete understanding** of the consequences. Her **parents ask** if they can overrule her decision. What do you do?

→ Seek legal advice

The above case is **not an emergency** and there is time to seek advice legally. She is considered competent even if she is below 16 years old.

In the case of an **emergency**, **parents consent can overrule** a child's decision if a child is deemed to be competent to make a decision

Consent Clinchers

- **Unconscious patient cannot** be tested for any infections if it is not in his medical interest
- Existing blood sample can be tested for serious infections like HIV if there is a good reason to believe patient may be infected

Brain trainer:

A junior doctor had a **needle stick injury** from the needle used to draw blood from an unconscious patient in the intensive care unit. The unconscious patient is deemed to be a low risk of having blood-borne infections in the past. The junior doctor is worried about a blood-borne infection. What is the most appropriate action?

- Test patients for blood-borne infections only once **patient regains consciousness** and provides consent

However, patients can be tested prior to their consent for blood-borne infections when it is in **their immediate medical interest**

Jehovah's Witness

Jehovah's Witness (do not accept blood transfusion):

- If **patient refuses**, do not give transfusion even in emergency scenario (Respect his wishes)
- If patients **caregiver refuses** but **patient is willing**, give blood transfusion and document details
- Give a transfusion only in case of emergency when patient is **unconscious** and there is **no evidence** that he doesn't want transfusion

Brain trainer:

A 34 year old man involved in road traffic accident and present to the hospital with circulatory collapse. He is Jehovah's Witness and carrying written directive refusing blood transfusion. What is the next appropriate step?

→ **Resuscitate with fluid only**

Jehovah's Witness

Brain trainer:

An unconscious woman is brought to the ED by her husband after a road traffic accident. She requires a blood transfusion but the husband refuses on the basis that they are devout Jehovah's Witnesses. What is the next appropriate step?

→ **Transfuse blood without consent**

Given there is no documentation provided by the husband to support his claim and the woman is unconscious, life-saving treatment must be administered.

Breaching Confidentiality

When there is:

- A risk to someone's life
- A health staff suffering from serious communicable diseases or notifying illnesses

Brain trainer:

A 38-year-old man with schizophrenia informs during the consultation that he hears voices telling him to **hurt his ex-wife**. He knows the voices are not real, but occasionally he feels like he needs to act on them.

- **Breach confidentiality** considering the risk to the life of his ex-wife.
- **Admit** the patient in the hospital. Inform the police to warn his ex-wife.

Breaching Confidentiality

Brain trainer:

You are treating a surgeon for **Hepatitis B**. He is working in another hospital, and he have not informed NHS about the diagnosis. What do you do?

→ **Hepatitis is a notifying illness. You must inform the relevant health authorities**

Unlawful Behaviour of Colleague

Step 1 → Confront the colleague

Step 2 → Inform supervisor

Step 3 → Organisational head or Medical director

Step 4 → In case of scenarios of immediate harm, GMC can be informed

Medical defence organisation or clinical governance can also be notified

Brain trainer:

You notice many pictures of X-rays taken on your colleague's phone. After confronting him, he tells you that it is for his study and doesn't share with anybody else. What is your next action?

→ Advice him to **delete** the photographs (follow step 1)

Patient Relationship

Brain trainer:

Your consultant is having a sexual relationship with a widowed patient that is currently being treated for depression. What action should you take?

→ **Report him to trust manager as per hospital protocol**

Mental Capacity

- Always presume that EVERY patient has a capacity to make a decision for their care and to decide to agree or not, an examination, investigation or treatment
- This is irrespective of patient's age, gender, or any diagnosis, decision

Brain trainer:

A 34-year-old man with multiple sclerosis has taken an overdose of more than 50 tablets of paracetamol with the intent to end his life. He has been brought to the Emergency Department by his wife. He is **refusing all interventions**. What is the appropriate action?

→ Evaluate his mental capacity to refuse the treatment

Mental Capacity

Assess Mental capacity:

1. Begin with presumption of capacity
2. Capacity is decision and time specific
3. Help your patient to maximise his/her ability to make a certain decision (get interpreter, simplify the information, give more time to understand etc

If patient lacks capacity, you can decide 'in their best interest' or for their overall benefit

Who can check?

Doctors who are three years post registration and have undertaken the deprivation of liberty safeguards' Mental Health Assessors training programme made available by the Royal College of Psychiatrists

This training is not essential for everyone

Mental Capacity

- In cases of **memory impairment**, do not assume lack of mental capacity
- Check capacity every time for important decisions

- In case, a **power of attorney** is specified you still have to assess mental capacity of the patient
- If he has capacity, his decision is considered valid
- Power of attorney can only take decisions when patient is incapable of doing so

Mental Capacity

Brain trainer:

An 82 year old female with advanced dementia requests for **discharge before having recovered** completely from her ailment. Her daughter who is her caregiver and also has a power of attorney thinks discharge would be unsafe. What are the steps to be taken?

- **Assess mental capacity** of the patient irrespective of her diagnosis, age, opinion of her caregiver/ power of attorney
- If the patient is found to have enough mental capacity, **her decision is final**

Learning Difficulties

Brain trainer:

A man with learning difficulties presents with haematemesis. Endoscopy is indicated which requires consent. How should you proceed?

- ❖ **Obtain a consent from his guardian with power of attorney**

Driver and Vehicle Licensing Agency (DVLA)

Patients should inform DVLA about following medical conditions:

- Diabetes/ taking insulin
- Syncope
- Heart conditions like atrial fibrillation & pacemakers
- Sleep apnoea
- Epilepsy
- Stroke
- Glaucoma

Patients should handover the licence if doctor has advised to stop driving for 3 months or more

Fines up to £1000 if medical conditions are not informed to DVLA

- Group 1 (car, motorcycle)
- Group 2 (bus and lorry)

Driver and Vehicle Licensing Agency (DVLA)

Doctors and other healthcare professionals should:

- Advise the individual on the **impact** of their medical condition for safe driving ability
- Advise the individual on their **legal requirement** to notify the DVLA of any relevant condition
- Treat, manage and monitor the individual's condition with ongoing consideration of their fitness to drive
- Notify the DVLA when fitness to drive requires notification but an individual cannot or will not **notify** the DVLA themselves

Driver and Vehicle Licensing Agency (DVLA)

Brain trainer:

A 48-year-old man recently had a **transient ischaemic attack**. He has recovered well from it. What advice on car driving would you give him?

→ Stop driving for at least 1 month

Single episodes need not be notified to DVLA but multiple episodes need to be notified

Driver and Vehicle Licensing Agency (DVLA)

Brain trainer:

A 71 year old grandmother has Alzheimer's and her family is concerned about her driving skills. She has refused to inform any authority about her situation. What should you do?

- ❖ Inform the Driver and Vehicle Licensing Agency

DVLA (Do Not Drive)

	Group 1	Group 2
Epilepsy	12 months from last seizures	10 years seizure-free without medications
First seizure	Minimum 6 to 12 months	Minimum 5 years
Vasovagal syncope while sitting Single episode	Avoidable trigger: 4 weeks Unavoidable: until risk reduces to less than 20%	3 months or more
Vasovagal syncope Recurrent episodes	Minimum 1 year	3 months to 2 years
Stroke, CVT, TIA (single) Multiple TIAs	Minimum 1 month 3 months	Minimum 1 year

Driver and Vehicle Licensing Agency (DVLA)

Brain trainer:

A lorry driver has a seizure. What must be done?

- **Inform DVLA and should not drive for a period of time until certain criteria are met**

Driver and Vehicle Licensing Agency (DVLA)

Brain trainer:

You are suspicious that a lorry driver has obstructive sleep apnoea syndrome. What is the initial step?

→ **Advise to stop driving cars and lorries**

Forgotten or Misplaced Notes

- The Information Governance Lead is in charge of collection, storage and management of information
- If there is breach in confidentiality → Incident report needs to be completed for misplaced sensitive information

Brain trainer:

A nurse puts handover details of all the patients into handheld notes of a patient. The patient takes those notes home and calls the ward informing you of the incident. What is the next best step?

→ **Complete the incident form and inform Information Governance Lead**

Gifts From Patients

- Small gifts, tokens are acceptable
- Valuable gifts, cast NOT acceptable
- A register should be kept for gift valued £100 or more
- If patient insists, you can suggest to donate the amount to NHS trust

Gifts From Patients

Brain trainer:

A patient offers you a valuable clock as a gift. What should you do ?

→ **Refuse the gift and inform him that doctors are unable to accept valuable gifts from patients**

Sexual Health

Give the needed advice irrespective of any age

If age is under 16 years and if you believe:

- They understand all the aspects or
- Cannot be persuaded to tell parents or
- likely to have sex irrespective or
- In their best interest

Keep the consultation confidential

Steps to approach:

- Gain confidence
- Encourage to inform parents
- Enquire about partner's age

Sexual Health

Brain trainer:

A 14 year old girl who is sexually active with 15 year old boyfriend presents to clinic requesting for oral contraceptives. What do you do?

- Prescribe oral contraceptives
- Advise her to involve her parents in her decision
- **No need to breach** confidentiality because her boyfriend is from a similar age group

Sexual Health

If your beliefs conflict the treatment you are giving, explain the same to patient and give option to see another doctor.

Help in making such arrangements.

Brain trainer:

A 34 year old woman who is 20 weeks pregnant presents to you asking advice for abortion. She does not wish to continue the pregnancy. **Your religious beliefs are against any kind of abortion.** What do you do?

→ Explain the patient that you cannot advise her on abortion and ask her if she will be comfortable if you **refer her to another doctor**

Sexual Health

Breach confidentiality if you believe:

- A young person is too immature to understand/consent
- Big age difference between sexual partners
- Partner has a position of trust/ is superior
- Suspected foul play with bribe, payment, influence of drugs or alcohol
- If a child is having known abusive relationships
- If there is immediate threat to child's life

Sequence to inform Inform if child under immediate threat:

- Social services
- Safeguarding authority
- Police

Sexual Health

Brain trainer:

A 14 year old girl who is sexually active with her boyfriend who is also her teacher, aged 34 years presents to clinic requesting for oral contraceptives. What do you do?

- **Prescribe oral contraceptives**
- **Breach the confidentiality**
- **Inform social services**

Sexual Health

Brain trainer:

A woman comes in asking for a contraceptive prescription for her 14 year old daughter.
What should you do?

→ **Ask the woman and daughter to come in together**

Sexual Health

Brain trainer:

A 15 year old girl attends presents with mild vaginal bleeding. She has a positive pregnancy test and does not want her parents to know.
What should you do?

→ **Assess child's competency to make decisions**

Do Not Resuscitate (DNR)

Do Not Resuscitate:

- Health care personnel is not required to resuscitate a patient in cardiopulmonary arrest
- The decision is taken by treating doctor
- DNR doesn't require consent from patient or relatives but DO involve them in the process of decision making

Do Not Resuscitate (DNR)

Brain trainer:

An 82 year old woman with a background history of **dementia** comes to the hospital with symptoms of pneumonia. She rapidly deteriorates after a few days. The medical team has deemed that resuscitation would not be in the patients best interest as it would lead to poor quality of life. There is **no advanced notice or living will** in her notes which states her decision. Her daughter tells you that she thinks she should be resuscitated. What's the appropriate action in regards to **DNR**?

→ **Involve patient and her daughter regarding the decision, but no consent is necessary** from daughter or patient for a DNR order

Life Saving Emergency Procedures

- Ok to perform procedure with just verbal consent
- **Language barrier:** Try to arrange translator quickly. If not available, proceed to do what is in patient's best interest without consent
- Patient not in fully conscious state: Perform the required procedure without consent
- Debrief patient after gaining consciousness

Life Saving Emergency Procedures

Brain trainer:

A 33 year old woman who is 39 weeks pregnant is in the labour ward with her husband. On examination, umbilical cord prolapse is noted, and the decision for an **emergency caesarean** is made. Unfortunately, she is **unable to sign** as she is illiterate. What is the most appropriate course of action?

- **Perform** the caesarean section with verbal consent
- **Document** the reason for verbal consent in notes

The similar scenario might explain the language barrier in the place of illiteracy. The course of action remains the same in such emergency situations.

Life Saving Emergency Procedures

In case of an emergency, treat the patient without consent. Once the patient regains the capacity within your care, inform them what was done and take consent for further treatment.

Brain trainer:

A 17 year old boy is brought to the Emergency Department unconscious following a road traffic accident. What is the appropriate management?

→ **Resuscitate** him without consent

Patient Refusing Medical Decision

Steps to follow:

- Assess mental capacity
- Seek advice from nursing staff or close relatives of the patient, colleagues with relevant experience
- Seek legal advice if you are not sure.

If patient has **mental capacity** and refusing, **respect** his wishes.



Patient Refusing Medical Decision

Brain trainer:

A 39 week pregnant, 28 year old woman in labour is in the maternity unit in a second stage of labour. The cardiotocography shows late decelerations in over 50% of contractions for more than 30 minutes which suggest foetal distress. You have explained the situation to her and made it clear that an emergency caesarean-section is required and have informed her of the risk. She considers the consent but after a long discussion with her husband and weighing out the risk, she decides that **she still wants a vaginal delivery**. A mental capacity assessment is carried out and she is **deemed to have capacity**. What's the next course of action?

→ **Respect** her wishes and attempt for a vaginal delivery

Third Person Reporting Incident

Brain trainer:

Mary, who is a close friend of Alice attends the GP Surgery with concerns about the way Alice's daughter cares for her mother. Alice has been living with dementia for the past 3 years. Mary mentions that when Alice's daughter goes out, she locks her mother in the house to avoid her from wandering outside. Alice's daughter is the sole carer for her, what is the most appropriate plan to be actioned by the GP?

→ **Inform the local safeguarding team** who can further investigate and take necessary steps to harm to Alice

Coroner Reporting

Deaths due to :

- Accident
- Suicide
- Violence
- Neglect
- Industrial diseases
- Sudden and unexpected death
- Death who was not seen by a doctor within 14 days before
- Death within 24 hrs of hospital admission
- Deaths occurring shortly after polio or prison custody

Brain trainer:

A 55 year old with a history of pancreatic cancer had a cardiac arrest and **died on the operating table** while undergoing surgery for the cancer. The surgeons said that he bled unexpectedly.

→ **Report** this death to the **coroner** as this death is due to unnatural cause and occurred during surgery

Legal Facts

Euthanasia is illegal in UK

It is good practice **not** to write **prescriptions** for colleagues or relatives by yourself

Consultant can add **addendum** to original investigation report in case of missed findings by junior doctor with date and time

If treatment changes due to updated report, responsible consultant can contact the patient and start him on required treatment along with documentation of his actions

For **intimate examinations**, presence of **chaperone** is necessary but if patient refuses, respect his wishes and document the same. If you are not comfortable for examination without chaperone, refer to other doctor

Relatives are not substitute for chaperone

Circumcision on religious ground is legal in UK

Legal Facts

An **advance statement** is a written statement that sets down a person's preferences, wishes, beliefs and values regarding their future care.

It's **not legally binding**.

An **advance decision** : Advance decision to refuse treatment (**ADRT**) or a **living will**

It is a **legally binding** decision.

Allows someone aged 18 or over, while still capable, to refuse specified medical treatment for a time in the future when they may lack capacity to consent to or refuse that treatment.

Do not consider suicide notes as a advance decision.

The document must be **signed and witnessed**.

Non-Accidental Injury

Brain trainer:

A young woman presents with respiratory problems. Her husband translates for her as she does not speak English. On auscultation, you notice bruises of varying ages. What is the most appropriate action?

→ **Admit and arrange an independent translator**

Medical Error

Brain trainer:

A junior doctor marks a CT scan as normal. A short while later, the consultant reviews the same scan and finds an abnormality. What action should the consultant take?

→ **Add an addendum to the original clinical report with the new date and time**

Chaperone

Brain trainer:

What action should you take when a patient refuses a chaperone for a physical examination?

→ **Carry on without a chaperone and record that the patient declined a chaperone**